

Plaintiff Ernisha Johnson seeks leave to file an amended complaint against an additional defendant. The Court received no opposition.

The initial complaint was filed February 3, 2025, with a First Amended Complaint filed July 21, 2025. Current Defendant Hunter Curtis Campbell filed an Answer on September 9, 2025. Plaintiff asserts that “[t]hrough recent discovery, Plaintiff identified an additional individual and/or business entity directly involved in the motor-vehicle incident described in the complaint.” Pursuant to Code of Civil Procedure section 428.50(c), leave of the Court is required in this circumstance. There is no indication of bad faith and the Court does not see any prejudice. The lack of opposition does bolster both of those findings.

For the reasons stated above, the Motion is **granted**. Plaintiff must file the Second Amended Complaint within five days.

10. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING ON DEMURRER TO: COMPLAINT

FILED BY:

TENTATIVE RULING:

The demurrer filed by Nationstar Mortgage LLC d/b/a Rushmore Servicing and Deutsche Bank Trust Company Americas, as Trustee for Residential Accredited Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates, Series 2006-QO4, joined by Mortgage Electronic Registration Systems, Inc., is moot.

Plaintiff filed and served a First Amended Complaint (FAC) on April 1, 2026, which supersedes the original pleading. (*People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506.) Under Code of Civil Procedure section 472, a plaintiff may amend once as of right after a demurrer is filed, provided the amended pleading is filed and served no later than the deadline for filing an opposition. The demurrer was originally calendared for April 8, 2026, continued to April 9, 2026, in anticipation of reassignment to Department 10, and further continued by Department 10 to April 23, 2026. In their Notice of Non-Opposition filed March 30, 2026, Defendants asserted that the operative opposition deadline was March 26, 2026, based on the April 9 hearing date. Even assuming that is correct, the Court would grant leave to amend in any event. Any ruling on the original pleading would therefore be an idle act.

11. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING IN RE: JOINDER TO DEMURRER

FILED BY:

TENTATIVE RULING:

See Line 10.